LEASE AGREEMENT

This agreement, made this _____ day of _____ of _____ by and between:

Lessor(owner/owner-operator)_____and

Lessee (leased on to) _____ (carrier) _____

Whereas, Carrier is a Federal Motor Carrier Safety Administrator (FMCSA) regulated motor carrier engaged in the transportation of commodities and goods for hire.

Whereas, Owner-Operator is an independent contractor and the owner of or has the rights to lease automotive equipment suitable and qualified for over the road for ire transportation service and owner-operator desires to lease with qualified driver.

Lessor hereby agrees to:

1) Leases to and delivers to the lessee the following below described motor vehicle(s) for the period of UNLIMITED YEAR(S) to be used by the lessee in the transport of property and warrants.

2) The Owner-Operator is solely responsible for all cost of owing, maintaining and repairing all the equipment used by the Owner-Operator in performing under this agreement as well as all personnel cost and salaries. These cost include, but not limited to, the expense of purchasing, renting or leasing equipment, bonding, physical damage and liability insurance, licensing fee, and other registration cost, fee and expenses, federal withholding, fica, oil, tires, Medical expenses, highway use taxes, unemployment taxes and worker's compensation insurance, fuel, garaging, part and other items necessary to operate and maintain the equipment. The Owner-Operator is also solely responsible for all cost of traffic violations, over weigh and over loading fines and penalties. Owner-Operators is moving under shipper's load, weight and count and seal integrity is maintained.

3) That the lessor, is the legal owner or guardian of said vehicle(s) described as follows:

TRACTOR **UNIT: _____YEAR: _____ MAKE: _____VIN: _____**

UNIT: _____YEAR: _____ MAKE: _____VIN: _____

UNIT: _____YEAR: _____ MAKE: _____VIN: _____

4) Owner-Operator (lessor) may produce and maintain the following insurance coverage's during the term of this agreement:

-Physical damage insurance (truck and trailer)

However this insurance is optional, the lessor will keep the carrier harmless of all responsibilities or claims applied to this specific type of coverage.

5) Owner-Operator shall pay the following taxes: federal, local, sales, highway use, possession, excise, personal property, assessments, penalties, fica, withholding taxes, unemployment compensation, workman's compensation, Medicare and social security imposed on or in connection with service provide under this lease agreement, except as set forth in exhibit a to this agreement. If additional taxes or charges are imposed by the law from whatever source upon the operations conducted by Owner-Operator under this contract shall be sole responsibility of the Owner-Operator.

6) Owner-Operator shall be responsible for over-size or over-weight violation where the seals of the shipments tendered to Owner-Operator are not intact or over-size or over-weight is plainly determinable by or is due to acts or omission of the Owner-Operator.

7) Owner-Operator will provide with copies and originals of BOL, repairs during the route, maintenance records and any other documentation related such as records of duty, fuel receipts, etc.

8) Owner-Operator agree to indemnify and hold harmless Carrier for all claims, cost, losses, damages, injuries, deaths, and expenses including attorney's fee arising out of :

A) Owner-Operator's failure to comply with the provisions of this lease agreement: or

B) Owner-Operator's failure to comply with applicable Federal, State and /or Local Law Regulations, Ordinances, or Employer's Responsibilities: or
C) Owner-Operator's use, maintenance, or operation of the equipment: or
D) Owner-Operator international or negligent misuse or handling of the equipment or shipments being transported: or
E) Any combination of the above.

9) Owner-Operator will be responsible for removing identification devices and paperwork from the equipment upon the termination of the lease and return it to the Carrier.

Lessee hereby agrees:

1) To issue and maintain liability and cargo insurance coverage for the protection of the public pursuant to FMCSA regulations under 49 U.S.C. 13906.

During the term of this lease that said vehicle(s) shall be solely and exclusively under the direction, supervision and control of the lessee, who shall assume full responsibility for the operation of such motor vehicle(s) to the public, the shippers, and all state and federal regulatory bodies. The Carrier will provide the lessor with the copy of each policy upon the request of the lessor. Each certificate of insurance shall include the name of the insurer, the policy number, and the effective dates of the policy, the amounts and types of coverage, and the deductible amount for each type of coverage for which the lessor may be liable.

2) The relationship between the Carrier and Owner-Operator is that of an independent contractor and nothing contained in this lease contract shall be construed as inconsistent with that status, however, the owner-Operator is solely responsible to comply with this regulations or Carrier will terminate this agreement as soon notice the lessor's non-compliance with it. Owner-Operator is not an employee, servant, agent, partner or joint venture of Carrier.

Owner-Operator has the exclusive right to employ, directly or indirectly and control all persons performing any service under an pursuant to this agreement and shall determine their terms and conditions of employment and such persons shall be under employees of the Owner-Operator and shall not be either the employee, co-employee or have any other relationship, with carrier.(Ex. Drivers)

3) Deductions:

-At fault violations $150 if any.

-Escrow $100 per week until $2000 is reached. (An itemized control of it will be kept by the Carrier and shared with the Lessor until the termination of this agreement. The amount remained after deductions will be returned to the Lessor/Owner-Operator after 30 days of termination.

-Insurance (Price will be set after insurance quote)

-Dispatch cancelation fee per load $100 after confirmation, if apply.

It is mutually agreed between the parties that the compensation to be paid by the Lessee to the Lessor for lease of the vehicle(s) herein described is the N/A_____, after deductions, payable each Friday of every week during the term of this lease.

Signed, sealed and delivered in the presence of:

Lessor (owner/owner-operator)	**Lessee (carrier)**
Signature: _____	Signature: _____
_____	_____